

## **Calendar Line 1 & 2**

**Case Name:** *FREDI CUELLAR et al vs MATILDA TRAINOR et al*

**Case No.:** 23CV417950

Defendants move to compel further responses to Requests for Production, Set Two, and Special Interrogatories, Set Two.

### **Meet and Confer**

To begin, the Court is not persuaded by Plaintiff's assertion that Defendants failed to properly meet and confer. In fact, the Court finds Plaintiff to be the more guilty party in this regard.

Although the Court is never impressed with meet and confer correspondence couched in terms of a "demand" and/or setting a 24-hour "deadline," Defendants' correspondence did set forth the bases for their concerns, and after the process began, Plaintiff more than once indicated that a response to Defendants' meet and confer effort would be provided - first prior to February 6, 2026, then by February 13, 2026. The promised response did not materialize. It appears that it was not until February 20, 2026, the final date for filing the motion to compel, that Plaintiff's counsel stated he could "talk." Nowhere in the correspondence before the Court did Plaintiff's counsel raise or specifically allude to any of his points in opposition to Defendants' position that the Court's May 23, 2025, order makes resolution of the issues simple. Waiting until the date the motion must be filed, two weeks after a response was initially promised, and then simply offering a live or telephonic conversation was too little and too late. Plaintiff is correct that as of January 1, 2026, a motion to compel shall be accompanied by a declaration showing "a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040(a).) In lieu of demands and deadlines, Defendants' correspondence should have included such an offer, which could have then been memorialized in a compliant declaration if things could not be resolved. Under these circumstances, however, the Court will not hold Defendants to the letter of section 2016.040. Although these motions were filed February 20, 2026, the initial meet and confer process began in 2025. More importantly, Defendants here need not be held to an in person, telephonic, or videoconference standard to informally resolve each issue presented by the motion when Plaintiff never informs them what the issues are despite promises to do so.

To the contrary, the Court finds no tangible effort by Plaintiff to engage in a substantive meet and confer process until the date that the motion was due. This alone may be sufficient grounds to grant the motion. But here, the Court also believes Defendants should prevail on the merits.

### **Requests for Production**

Defendants seek an order compelling production of the full, unredacted documents for RPD Nos. 40 and 41, redactions that conceal payor, booking, and traveler companion details.

Plaintiff represented that "subject to" objection he would comply and produce documents for RPD Nos. 40-41. Having agreed to produce, Plaintiff was not entitled to then redact responsive information without at minimum taking certain steps. Here, Plaintiff did not

identify with particularity any information to which any objection was being made, and as to any assertions of privilege, Plaintiff's responses did not provide sufficient factual information for Defendants to evaluate the merits of that claim, including, if necessary, a privilege log. (Code Civ. Proc., § 2032.240.) Plaintiff gave no explanation for the redactions, until opposing this motion.

In response to this motion, Plaintiff argues, "Defendants have not shown specific good cause for disclosure of every redacted field, including financial account numbers, booking or confirmation codes, ticket numbers, or unrelated itinerary metadata." But Plaintiff gave and has given no basis for the redactions, and as the Court has previously noted, "[u]nder the Legislature's 'very liberal and flexible standard of relevancy,' any 'doubts as to relevance should generally be resolved in favor of permitting discovery.'" (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 542, citing *Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 173.) The relevance of this line of inquiry *for discovery purposes* remains apparent, as it did at the motion to compel answers at deposition. Defendants may explore the possibility of the existence of bias, interest, motive, information related to claimed damages for these expenses (even if minimal), and credibility regarding Plaintiff, percipient witnesses, and treating experts.

The Court can see no issues with the majority of the redacted categories on their face, such as booking reference, taxes and fees, flight confirmation #, Eticket #, airline confirmation, total, ticket number, and detailed charges. The Court can only speculate that "billing details" may contain the "account-number information and other highly sensitive identifiers" Plaintiff seems concerned about. The section regarding the phone number and email attributed to Plaintiff on the documents may be legitimately protected from broad dissemination, although that hardly seems like much of a concern either. Regardless, any concerns regarding the appearance of this information on the face of the documents can be addressed with a protective order.

Accordingly, Defendants' motion to compel production of the full, unredacted documents for RPD Nos. 40 and 41 is GRANTED, subject to a mutually agreed upon protective order.

### **Special Interrogatories**

Plaintiff served his Responses to Special Interrogatories, Set Two, dated December 9, 2025, serving objections only to SROGs 70–77 and 79–82. The Court has considered the objections and they are OVERULED. The Court finds the inquiries sufficiently relevant for discovery purposes and the inquiries themselves, seeking only factual information regarding who paid for things and how much those things cost, does not implicate any privilege, and Plaintiff fails to establish any persuasive argument to the contrary.

Defendants motion to compel Plaintiff to provide further objection-free responses to Special Interrogatory Nos. 70–77 and 79–82 is GRANTED.

### **Sanctions**

In their memorandum in support of the motion to compel further responses to special interrogatories, Defendants request monetary sanctions against Plaintiff and his counsel in the amount of \$1,000. Defendants make no such request in their motion for further responses to

requests for production. In addition, neither of Defendants' notices of motion make requests for sanctions. Accordingly, Defendants' requests for sanctions are DENIED.

### **Conclusion**

Defendants' motion to compel production of the full, unredacted documents for RPD Nos. 40 and 41 is GRANTED, subject to a mutually agreed upon protective order. The parties shall meet and confer regarding the form of protective order and Plaintiff shall provide the ordered discovery within 20 days of the date of the hearing.

Defendants motion to compel Plaintiff to provide further objection-free responses to Special Interrogatory Nos. 70–77 and 79–82 is GRANTED. Plaintiff shall provide the ordered discovery within 20 days of the date of the hearing.

Defendants' requests for sanctions are DENIED.

Defendants shall prepare and submit the final order, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.

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**Calendar Line 3**

**Case Name:** *RYAN KOLSTAD vs SARAH EBRO et al*

**Case No.:** 24CV446807

Plaintiff's motion for sanctions pursuant to Code of Civil Proc., §§ 128.7(b)(1) and (b)(3) is DENIED.

“Code of Civil Procedure section 128.7 should be utilized only in “the rare and exceptional case where the action is clearly frivolous, legally unreasonable or without legal foundation, or brought for an improper purpose.” (*Operating Engineers Pension Trust v. A-C Co.* (9th Cir. 1988) 859 F.2d 1336, 1344.)” (*Kumar v. Ramsey* (2021) 71 Cal.App.5th 1110, 1121.) Although Plaintiff's motion is unopposed, the Court does not find that the self-represented Defendant's assertions and arguments made in support of her motion to quash, although unsuccessful, rise to the level of sanctionable conduct under section 128.7.

The Court will prepare the final order.

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